

TENTATIVE RULINGS

FOR: June 09, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBlla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer. (Cal. Rules of Court, Rule 1.150(c) & (d))

**** All matters originally set in Dept. B will be heard in Dept. A ****

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Joan May Blackman

26PR000093

PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY

TENTATIVE RULING: The Petition is GRANTED. Michael Torr is appointed as probate referee. The matter is set for a Status Hearing Re: Final Distribution on June 09, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final

distribution or a report of status of administration pursuant to Probate Code section 12200. The clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Berenice Montelongo v. Walsh Vineyards Management, Inc.

25CV000047

MOTION FOR ORDER COMPELLING ARBITRATION AND STAYING THE ACTION OF PLAINTIFF BERENICE MONTELONGO

TENTATIVE RULING: The motion is GRANTED. Plaintiff's Non-Individual PAGA Claims (defined below) are ordered severed from her other claims. Plaintiff is ordered to arbitrate all of her claims, excepting her Non-Individual PAGA Claims. The action is STAYED pending resolution of said arbitration. The Case Management Conference set for June 9, 2026 is VACATED. The matter is set for a Status Conference on October 6, 2026, at 8:30 a.m. in Dept. B.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court or emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

Defendant Walsh Vineyards Management, Inc. (Walsh) moves for an order compelling arbitration of this case on grounds that the parties agreed to arbitrate the instant dispute. Walsh further moves for an order staying those of Plaintiff's Private Attorneys General Act (PAGA) claims relating to alleged acts and omissions effecting employees other than Plaintiff (Non-Individual PAGA Claims) pending completion of arbitration.

Walsh's Request for Judicial Notice is DENIED in its entirety. The subject documents are not relevant to the Court's resolution of the issues presented. (See *In re Tobacco Cases, II*, JCCP 4042 (2004) 123 Cal.App.4th 617, 626 [“Although a court may take judicial notice of a variety of matters [citation], only relevant material may be noticed.” [Citation.]”])

B. LEGAL BACKGROUND